

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MOSES, DAMISA,	)	
	)	
Complainant,	)	
	)	DOCKET NO.:
v.	)	
	)	<u>1967(F)</u>
TRANS ATLANTIC SHIPPING, LLC	)	
	)	
Respondent.	)	

**COMPLAINANT’S RESPONSE TO RESPONDENT TRANS ATLANTIC SHIPPING,
LLC’S SUR-REPLY TO COMPLAINANT’S MOTION TO DISMISS**

COMES NOW Complainant MOSES DAMISA (hereinafter referred to as the “Complainant” or “Damisa”) by and through his undersigned counsel, hereby files his response to Respondent TRANS ATLANTIC SHIPPING, LLC’S (hereinafter referred to as the “Respondent” or “Trans Atlantic”) Sur-Reply to Complainant’s Motion to Dismiss without prejudice. As set forth below, Complainant’s Motion to Dismiss should be granted by the Federal Maritime Commission (hereinafter referred to as the “FMC”).

LEGAL ARGUMENT AND ANALYSIS

I. SUR-REPLY WAS IMPROPER

A sur-reply is defined as an “additional reply to a motion filed after the motion has already been fully briefed.” (USLegal.com, <http://definitions.uslegal.com/s/sur-reply/> (last visited August 25, 2021)). Neither the FMC Rules of Policies and Procedures nor the Federal Rules of Civil Procedure provide the right to file a sur-reply brief. In certain instances, a court may allow for a sur-reply brief to be filed, but only “where a valid reason for such additional briefing exists, such as where the movant raises new arguments in its reply briefs.” *Hill v. England*, 2005 WL 3031136, *1 (E.D.Cal. Nov. 8, 2005). Other courts have found that it is in the sole discretion of the Court to

determine is a sur-reply is permissible. “Although the Court may in its discretion permit the filing of a sur-reply, this discretion should be exercised in favor of allowing a sur-reply only where a valid reason for such additional briefing exists, such as where the movant raises new arguments in its reply brief.” *Fedrick v. Mercedes-Benz USA, LLC*, 366 F. Supp. 2d 1190, 1197 (N.D. Ga. 2005).

Respondent argues that it is filing a sur-reply to correct misstatements that Complainant stated in its reply. While Respondent may believe that misstatements were made, Complainant continues to assert these were no misstatements made in its Reply. Furthermore, Complainant did not raise any new arguments in its Reply. Therefore, additional briefing was no necessary and Respondent’s sur-reply should be disallowed and stricken from the Court record.

II. ALTERNATIVELY, IF SURREPLY IS ALLOWED, COMPLAINANT SHOULD BE AFFORDED THE OPPORTUNITY TO REPLY

In the alternative, should the Court allow the sur-reply to be admitted, Complainant should be afforded the opportunity to further reply. Discovery efforts were thwarted by the Respondent as Respondent failed to respond to several of Complainant’s discovery requests. Additionally, Respondent failed to provide all responsive documents. Additionally, Complainant served discovery responses within the discovery period and Respondent has failed and refused to provide any response these requests. While Respondent contends that Complainant did not fully respond to discovery requests, Complainant likewise contends that Respondent has failed to respond to Complainant’s discovery requests.

Regarding mediation, Respondent claims that Complainant misstated that mediation concluded in June. Respondent, in its own sur-reply brief admits that it used mediation as a forum to demand more discovery documents despite Complainant’s consistent assertions that it had fully complied with the Respondent’s discovery requests. Again, in Respondent’s sur-reply brief, it maintains that it would “consider making a settlement offer” if Complainant provided more

discovery. Complainant had no additional discovery to produce and thus there was no way to move forward with mediation.

Complaint was forced to make a hard decision about how to proceed and as shown in the prior filings, Complainant has opted to take his claims to State Court as is his right. Complainant strongly believes in the merits and validity of his claims against Respondent and believes that he will succeed in State Court. The timing of the decision was such that no prejudice would be suffered by Respondent and that all work product developed would be beneficial to Respondent in the State Court case.

III. CONCLUSION

Based on the foregoing, this Court should grant Damisa's motion and issue an order dismissing this matter without prejudice and denying Respondent's claim for attorney's fees.

This 25th day of August 2021.

Respectfully submitted,
THRIFT MCLEMORE

/s/ Matthew P. Collins

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing matter upon opposing party or counsel by email.

This 25th day of August 2020.

Respectfully submitted,
THE COLLINS FIRM LLC

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